JONATHAN SHALTON MORRIS
versus
PHILEMON NHACHI
and
BETTY NHACHI
and
ROCK CHEMICAL FILLERS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE; 15 April 2026

Civil trial – Absolution from the Instance

T K Hove, for the plaintiff
A Masiye with *D Sheshe,* for the defendants

DEMBURE J:

1. This is an opposed application for absolution from the instance at the close of the plaintiff's case in terms of rule 56(6) of the High Court Rules, 2021. The plaintiff testified in his own case and closed his case on 24 February 2026. The court, with the consent of the parties, issued a case management order in terms of which the defendants had to submit a written application for absolution from the instance by 3 March 2026. The plaintiff would, in turn, file his written response thereto by 9 March 2026, and a reply, if necessary, would be filed by the defendants by 12 March 2026. The court, thereafter, reserved judgment *sine die*.

FACTUAL BACKGROUND

2. The plaintiff is Jonathan Shalton Morris, a male adult and a former employee of the third defendant. The first and second are Philemon and Betty Nhachi, who are husband and wife, respectively. The third defendant is Rock Chemical Fillers (Private) Limited (*"the company"*), a company duly registered in terms of the laws of Zimbabwe. The company is the first and second defendants' family business.

3. It is common cause that the plaintiff was once employed by the company until he was dismissed following a disciplinary hearing, which he did not attend, in April 2019. The plaintiff was once married to the first and second defendants' daughter, Vanessa Nhachi. The plaintiff sued for a divorce against her in February 2019, and the divorce proceedings were concluded by consent.

4. There was no dispute that the plaintiff was arrested and charged with five (5) counts of theft of trust property by the Zimbabwe Republic Police (*"ZRP"* or *"the police"*). He was arraigned before the Magistrates' Court at Harare and prosecuted through the National Prosecuting Authority (*"NPA"*). This prosecution followed a report filed by the third defendant against him concerning various alleged criminal acts of theft of company property, discovered after an internal audit.

5. Internally, the company instituted disciplinary proceedings against the plaintiff for the charges of theft, among other acts of misconduct. He did not attend the hearing and was subsequently dismissed from employment. There was no dispute that he did not challenge his dismissal from employment in any labour forum.

6. After the plaintiff was arrested, he was released on bail pending trial. The criminal trial did not take place as the charges were withdrawn by the State after plea on 13 May 2021. Following the withdrawal of all the charges, the court found him not guilty and acquitted him.

7. The plaintiff thereafter instituted these proceedings alleging that he was maliciously arrested and prosecuted on the said five (5) counts of theft of trust property at the instigation of the defendants. He further pleaded that the turning point in his relationship with the defendants was the acrimonious divorce proceedings he filed against the first and second defendants' daughter, resulting in the malicious allegations and his arrest. It was pleaded that the defendants caused his arrest and prosecution without reasonable and probable cause. That the proceedings were motivated by malice, and after they felt they had done with him, they withdrew their charges after two (2) years.

8. It was also the plaintiff's case that the defendants also instructed the Ministry of Mines and Mining Development to revoke any prospecting licence issued to him, which resulted

in the Ministry refusing or failing to issue him a licence. He alleged that he suffered loss of income as a result of the defendants' malicious criminal charges. The plaintiff, therefore, claimed general damages in the sum of US$60,000.00 for mental suffering and harm and US$40,000.00 as special damages for loss of income.

9. In their plea, the first and second defendants denied reporting the plaintiff to the police and that they instigated the arrest. It was also denied that the third defendant caused the plaintiff's arrest, as it only made a report to the police to investigate various suspected thefts of trust property involving the plaintiff. They argued that the police proceeded to investigate the matter and arrested the plaintiff after being satisfied of the veracity of the allegations. The plaintiff was arraigned before the lower court, faced the allegations, and the decision to prosecute was made by the prosecution, in consultation with the police, after their investigations.

10. It was also denied that the plaintiff was maliciously dismissed from employment, as a disciplinary process was undertaken against him. They further argued that the State withdrew the charges and not the defendants. They did not know the reason for withdrawing the charges. The defendant denied any liability for the delict and the damages claimed.

11. The plaintiff filed a replication in which he insisted on the claim, alleging that the defendant acted jointly and that the third defendant was an *alter ego* of the first and second defendants. At a Pre-Trial Conference held before KATIYO J, the matter was referred to trial on the following issues:

> "a) Whether the Plaintiff has laid sufficient basis for suing the 1st and 2nd Defendants in a matter that involved the 3rd Defendant?
> b) Whether or not the Defendants are liable for the malicious arrest and prosecution of Plaintiff?
> c) Whether or not the Defendants are liable for causing any loss of income to the Plaintiff?
> d) Whether Plaintiff is entitled to any damages as against any of the Defendants and quantum thereof if any?"

12. The parties duly complied with the case management order issued on 24 February 2026 by filing their papers within the prescribed timelines. I will now turn to the submissions made therein.

THE DEFENDANTS' APPLICATION

13. It was argued for the defendants that there was no evidence on the essential elements of the claim for malicious arrest and prosecution. Counsel submitted that the plaintiff bears the *onus* to establish a *prima facie* case but failed to do so. The test for absolution from the instance at the end of the plaintiff's case was formulated in *Claude Neon Lights (SA) Ltd* v *Daniel* 1976 (4) SA 403 (A) at 409 G-H. It was further argued that the essential elements of malicious prosecution were set out in *Mapanga* v *Mupepe & Anor* HH 157/17. The failure to prove any one of them is fatal.

14. Counsel further argued that the plaintiff failed to prove that the defendants set the law in motion. Under cross-examination, he admitted that he was arrested by the police, that none of the defendants was present when he was arrested, that the decision to arrest him was made by the police, who also crafted the charges and that the prosecution was conducted by a public prosecutor from the NPA who also withdrew the charges, not the defendants. He argued that, on the authority of *Econet Wireless (Pvt) Ltd & Ors* v *Sanangura* SC 52/13, merely placing information before the police does not amount to instigation or direction. It was contended that there was no evidence that the defendants instructed the police to arrest him or directed his prosecution, nor that they influenced the withdrawal of the charges. Mere reporting without more does not constitute malicious arrest and prosecution.

15. In relation to the requirement that there was no reasonable and probable cause for the prosecution, counsel argued that this was not proved. It was submitted that the plaintiff admitted he faced multiple charges in the company's internal disciplinary process, including theft of trust property, damage to company property, misappropriation of fuel, and conflict of interest. He admitted to having been in a position of such conflict while still employed by the company. It was further argued that he admitted that the termination of his employment resulted from these charges. These admissions demonstrate objective grounds upon which a reasonable person could suspect wrongdoing. The plaintiff did not lead any evidence on the docket and did not even know why the charges were withdrawn. There was no evidence for the court to infer the absence of a reasonable cause. It was argued that the case rests entirely on speculation.

16. It was also submitted that there was absence of malice. Malice cannot be inferred merely from the circumstances; it must be proved. The plaintiff sought to infer malice from the alleged acrimonious divorce between himself and the first and second defendants' daughter. He had admitted, however, that the divorce was by consent, there was no contested trial, and there was no evidence of any hostilities thereto.

17. It was further submitted that there was no evidence against the first and second defendants. The plaintiff admitted that they had nothing to do with the arrest and prosecution. At the highest, the third defendant made a report to the police. It did not do more. The plaintiff accepted that. That should be the end of the matter, as no liability can also attach on the part of the third defendant.

18. As regards damages, it was submitted that there was no evidence to establish them. The plaintiff admitted that he had no medical evidence of the alleged emotional distress, no expert testimony, no financial statements supported by sales and purchase orders and no documentary proof of business loss. He placed no evidence regarding any sales or customers, or the alleged investors, whom he was not at liberty to disclose. There was no evidence on which the court could quantify the alleged loss as the plaintiff even refused to identify the alleged investors or customers.

19. Counsel also argued that the case suffered from a deeper structural defect, as there was no evidence from the police and the NPA who arrested and prosecuted the plaintiff. It was argued that without their evidence and their joinder, causation is entirely absent. I must state that the defendants' counsel was wrong to allege that the delict cannot be pursued without the police or the prosecution being joined to the suit. It is trite that while the claim for malicious arrest and prosecution is usually brought against the police or other state agents, a private individual who is alleged to have used the agency of the police or the State to cause him or her harm may commit the delict. See G Feltoe, *A Guide to the Zimbabwean law of Delict*, 2012 at p 93. The same position obtains in relation to the delict of unlawful arrest and detention. See *OK Zimbabwe* v *Msundire* SC 23/15, para 23 and *Nherera v Shah* SC 51/19 at p 24 para 56-57. It does not matter, therefore, that the plaintiff did not join the police or the public prosecutor to this claim. A suit for malicious

prosecution can still be validly pursued against the defendants as private persons even without the joinder of the police or the public prosecutor.

20. It was finally submitted that the plaintiff failed to establish the essential elements of the delict and a *prima facie* case. The defendants prayed that absolution from the instance be granted with costs.

THE PLAINTIFF'S OPPOSITION

21. The plaintiff opposed this application for absolution from the instance. It was argued that the defendants' defence was a bare denial, or alternatively, that the decision to arrest, detain, and prosecute was at the discretion of the police and the NPA, which defence was held invalid in the case of *Shah* v *Nherera* SC 55/24. I was referred to the four requirements which must be proved in a claim of this nature. It was argued that it was the plaintiff alone who had led evidence and that the defendants conceded that they made a report to the police. I hasten to state that the said para 3 of the plea only relates to the third defendant as the one who made the report, not the first or second defendants.

22. It was further contended that malice on the defendants' part was clear from the fact that the report to the police was only made immediately after the plaintiff instituted divorce proceedings against their daughter. This was after the defendants had dismissed the plaintiff from employment. Counsel argued that it was common cause that the first and second defendants were directors of the third defendant. It was argued that upon issuing a summons against their daughter, the plaintiff was dismissed from employment and subsequently arrested, detained and prosecuted pursuant to a report by the defendants. After two years on remand, he was acquitted after the defendants' company secretary withdrew the charges after plea. The defendants cannot be exonerated from having caused the arrest.

23. Counsel argued that judicial notice should be taken that the police act on reports made by a complainant. The complainants are the defendants, and the plaintiff led prima facie evidence to prove his case. The defendants have a case to answer. It was established that a criminal case was instituted by the third defendant through its functionaries, namely the first and second defendants. The third defendant's name appears several times in the state

outline and the charge sheet. It cannot avoid liability, as it is the one who brought the matter. The court extract showed that the matter was withdrawn after plea. The only conclusion that can be drawn is that the State failed to make a case on evidence; alternatively, it failed to present a *prima facie* case from the information provided by the defendants. The state cannot withdraw a case without consulting the complainants. To further compound their malicious intentions, the defendants, through their legal practitioners, wrote to the Ministry of Mines and Mining Development and openly demanded that the plaintiff's application for mining permits be rejected on the basis of the baseless criminal allegations they had instigated against the plaintiff. There was reference to several cases, including *inter alia*, *Johnstone v Murphy & Ors* HH238/25 and *Van Wyk* v *Venter N.O & Ors* (21072/2019) [2025] ZAWCHC 19, imploring the court to exercise caution as it had not heard from the defendants.

24. It was reiterated that the plaintiff was prosecuted on allegations of five (5) counts of theft of trust property, and the defendants were the complainants who filed the report. Counsel sought to rely on what he said was an affidavit of Detective Wesley Chinyama, the investigating officer, but that document was not placed before me in evidence during the plaintiff's evidence in chief. I can only relate to the documentary evidence tendered at the trial. It was further argued that the police and the NPA acted upon the complaint lodged by the defendants. Counsel submitted that no evidence was produced to support the allegations that the plaintiff had stolen from the defendants. It was contended that the plaintiff had demonstrated that all the requirements for a claim for damages for malicious arrest and prosecution had been satisfied. A *prima facie* case had been presented. The plaintiff prayed for the dismissal of the application with costs at an attorney-client scale.

THE DEFENDANTS' REPLY

25. The defendants' counsel related to the test for absolution from the instance and restated the requirements for malicious arrest and prosecution. It was argued that reporting a suspected offence to the police does not constitute instigating prosecution. The Supreme Court has made it clear that giving a candid account to the police, however, incriminating, is not sufficient to constitute the instigation of prosecution. The decision to arrest and prosecute lies with the police and the prosecuting authorities, who exercise

independent statutory discretion. See *Minister of Home Affairs* v *Bangajena* 2000 (1) ZLR 80 (S). The complainant does not set the law in motion merely by making a report. There was no evidence that the defendants directed the police to arrest him, insisted on prosecution, or influenced the investigative or prosecutorial decision.

26. Counsel further restated the position that there was no evidence of the absence of reasonable and probable cause. It was also maintained that malice was not established. As stated in *Econet Wireless (Pvt) Ltd* v *Sanangura* (*supra*), malice cannot be inferred merely because a prosecution ultimately fails. It was also submitted that the quantum claimed was unsupported. That there was no case to answer for the defendants, and absolution ought to be granted with costs.

THE LAW

27. The applicable test in an application for absolution from the instance at the close of the plaintiff's case is well-established. It is whether there is evidence upon which a court acting reasonably could or might find for the plaintiff. In other words, the plaintiff must establish a *prima facie* case in the sense that there is evidence relating to all the essential elements of the claim. Thus, in *Gordon Lyod Page & Associates* v *Rivera & Anor* 2001 (1) SA 88 (SCA) at 92 para [2] it was stated as follows:

> "The test for absolution to be applied by a trial court at the end of the plaintiff's case was formulated in *Claude Neon Lights (SA) Ltd v Daniel* 1976 (4) SA 403 (A) at 409 G-H in these terms"
>
> > '…[W]hen absolution from the instance is sought at the close of plaintiff's case, the test to be applied is not whether the evidence led by plaintiff establishes what would finally be required to be established, but whether there is evidence upon which a Court, applying its mind reasonably to such evidence, could or might (not should, nor ought to) find for the plaintiff (*Gascoyne v Paul and Hunter*, 1917 TPD 170 at p 173; *Ruto Flour Mills (Pty.) Ltd. v Adelson* (2), 1958 (4) SA 307 (T).'
>
> This implies that a plaintiff has to make out a *prima facie* case - in the sense that there is evidence relating to all the elements of the claim - to survive absolution because without such evidence no court could find for the plaintiff (*Marine & Trade Insurance Co Ltd v Van der Schyff* 1972 (1) SA 26 (A), 37G38A; Schmidt Bewysreg 4 th ed 91-92)."

28. The same test was also formulated in *Supreme Service Station (1969) (Pvt) Ltd* v *Fox Goodridge (Pty) Ltd 1*971 (1) RLR 1 (A) at 5D – E. See also *United Air Charters (Pvt)*

Ltd v *Jarman 1*994 (2) ZLR 341 (S) 343 B-C. The law was further restated in *ZIMASCO (Pvt) Ltd* v *Tsvangirai & Ors* SC 12/20, where it was held that:

> "It is trite that the court cannot *mero motu* consider whether absolution must be granted. It is an option which is available to the defendant, upon application. When an application for absolution from the instance is made at the end of the plaintiff's case the test is: what might a reasonable court do, that is, is there sufficient evidence on which a court might make a reasonable mistake and give judgment for the plaintiff; if the application is made after the defendant has closed his case the test is: what ought a reasonable court do?
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> In deciding what a court may or may not do, it is implied that the court may make an incorrect decision, because at the close of the plaintiff's case, it will not have heard all the evidence.
>
> What flows from the above cases is that absolution from the instance will not be granted if there is sufficient evidence, which a court, directing its mind reasonably to such evidence, could or might (not should or ought to) find for the plaintiff."

ANALYSIS

29. I must apply the above principles in determining the question that arises, that is, whether or not the plaintiff has managed to prove a *prima facie* case against the defendants. The court must find whether the plaintiff has proved all the four requirements for a claim for malicious arrest and prosecution. What constitutes the delict of malicious arrest and prosecution, and the four requirements thereof, which must be alleged and proved, are matters of settled law. These four requirements for an action for malicious prosecution are that the prosecution was instigated by the defendant; that there was no reasonable and probable cause for the prosecution, that the prosecution was actuated by malice and that the prosecution was concluded in the plaintiff's favour. See *Econet Wireless (Pvt) Ltd* v *Sanangura* (*supra*) at pp 8-9, MALABA DCJ (as he then was) said:

> "The law on the delict of malicious prosecution is clear. In *Luke Davies v Premier Finance Group Limited* HH-235-10, PATEL J (as he then was), said at pp 10-11:
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> > "According to Feltoe: *A Guide to the Zimbabwean Law of Delict* (2006), **the delict of malicious prosecution or proceedings is committed:**
> >
> > **"When D maliciously and without reasonable and probable cause brings legal proceedings against another**. Every citizen has a right to use legal proceedings legitimately for the purpose of upholding and protecting his rights. He or she does not, however, have the right to abuse the legal process for the purpose, not of upholding and furthering his or her rights, but instead solely for the purpose of causing harm to P because he or she has malice towards P.
> >
> > … As regards malicious prosecution, the case of *Bande* v *Muchinguri* (1999) points out that the term 'malice' did not here mean spite or ill-will or a spirit of

> vengeance; it had a wider connotation. It included any motive different from that which is proper for the institution of criminal proceedings, which is to bring an offender to justice and thereby aid in the enforcement of the law"."
>
> **In order for one to succeed in an action for malicious prosecution, one must prove four requirements, namely: that the prosecution was instigated by the defendant; it was concluded in his favour; there was no reasonable and probable cause for the prosecution; and that the prosecution was actuated by malice**. (See *Mohamed Amin* v *Jogendra Kummar Bannerjee* 1947 AC 322 (PC) 330, *Minister of Justice & Constitutional Development* v *Moleko* 2008 (3) All SA 47 (SCA) para 8.)" (*my emphasis*)

30. In *casu*, there is no dispute that the prosecution was concluded in the plaintiff's favour. This was also shown from the court extract admitted as Exhibit 1. Accordingly, it was common cause that the plaintiff was acquitted after all the charges were withdrawn by the State after plea. There was no issue with that requirement. The contentions arose in respect of the other three requirements or essential elements. The first requirement that the prosecution must have been instigated by the defendants is what I will now deal with.

31. It is common cause that the report to the police concerning the allegations constituting theft of trust property was made by the third defendant. This fact was admitted in para 3.3 of the defendants' plea. It was pleaded that "The 3rd Defendant only made a report to the police to investigate various suspected cases of theft of trust property against the Plaintiff." See p 18 of the record. This was also confirmed by the plaintiff in his evidence-in-chief, though he said it was the company that made the report, influenced by the first and second defendants. He also confirmed under cross-examination that the report was made by the third defendant, but he did not know who within the company did so. He assumed it was Gerald Muvhami as he was the representative. He admitted that the assumption excludes the first and second defendants. At least as against the first and second defendants, the plaintiff conceded that they did not personally make any report to the police.

32. Even if it was not in dispute that the third defendant made the report to the police, that alone does not establish the delict of malicious prosecution. What is required is that the defendant must have instigated the prosecution. It is trite that mere reporting of a suspected offence, without more, does not constitute instigating an arrest or a

prosecution. MALABA DCJ (as he then was) in *Econet Wireless* (*supra*) at p 9, succinctly clarified this position as follows:

> "**Placing of information and facts before the police does not in itself amount to instigating prosecution. It would amount to instigation if besides giving information the defendant proceeds to lay a charge or overbears on the police to institute proceedings which they would not otherwise commence or institute**. In *Bande v Muchinguri* 1999(1) ZLR 476, MALABA J (as he then was) said at p 484:
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> > "The question is whether Mr Muchinguri instigated the institution of the prosecution against the plaintiff. J G Fleming *The Law of Torts* 7th ed at p 582 states that:
> >
> > > "The defendant **must have been actively instrumental** in setting the law in motion. **Simply giving a candid account, however incriminating, to the police ... is not the equivalent of launching a prosecution**: the critical decision to prosecute not being his 'the stone set rolling [is] a stone of suspicion only'. *But if besides giving information he proceeds to lay a charge, this amounts to an active instigation of proceedings which he cannot shrug off by saying that they were in the last resort initiated at the discretion of the public authority*" (the emphasis is mine).
>
> In *Baker v Christine* 1920 WLD 14, BRISTOWE J said **the "test" "is whether the defendant did more than tell the detective the facts and leave him act on his own judgment**". The principle that giving an honest statement of fact to the police on which the prosecution is then instituted is not "instigating" a prosecution was referred to with approval by PRICE J in *Madnitsky v Rosenberg* 1949 (1) PH J5 at pp 15-16. See also *Waterhouse v Shields* 1924 CPD 155 at 160; *Prinsloo & Anor v Newman* 1975 (1) SA 481 (A)." (*my emphasis*)

33. The mere fact that the third defendant gave a statement to the police of the facts, however, incriminating or made a report against the plaintiff, did not *per se* constitute instigation. The plaintiff was required to show more in his evidence than that the defendants merely made a report to the police. GARWE JA (as he then was) in *Nherera v Shah* (*supra*) at p 25 also confirmed the applicable test as follows:

> "The law requires that a defendant must have been actively instrumental in setting the law in motion. **Simply giving a candid account, however incriminating to the police, is not sufficient. The test is whether the defendant did more than tell the detective the facts and leave him to act on his own** – *Econet Wireless (Pvt) Ltd v Sanangura* 2013 (1) ZLR 401(S), 408 AB; *Bande v Muchinguri* 1999(1) ZLR 476(H), 484". (*my emphasis*)

34. In *casu*, there was completely no evidence to show that the third defendant or any of the other defendants instigated the prosecution. What the plaintiff could only show was that the third defendant simply gave a report to the police. The plaintiff, under cross-examination, conceded that he was arrested by the police. He also admitted that when he

was arrested by the police, none of the defendants was present. He also admitted that he had no evidence that either defendant controlled or influenced the police, or bribed officials of the ZRP and the NPA, in his prosecution. He further accepted that the charges were crafted by the police officers, not by any of the defendants. The plaintiff also conceded that the police independently investigate any report when it is made, and there was no evidence whatsoever that the decision to arrest and prosecute him was made by the defendants. He also agreed that it took some time for investigations to be completed, that the decision to arrest was that of the police, and that the decision to prosecute was that of the NPA. He did not provide any evidence from the police officers involved to show that the defendants, in particular the third defendant, did anything beyond merely laying a report with the police. Even in his evidence-in-chief, he said he could not comment on why the prosecution was dropped. He said the reasons lie with the company's representative, Gerald Muvhami. That he was prosecuted by the State through the NPA was undisputed. Clearly, by his admissions in respect of the critical matters on the role played by the defendants in his prosecution, there is nothing to show that the third defendant or any of the other defendants instigated the prosecution.

35. There was no evidence that any of the defendants actively overbore the police or directed the prosecution or that they were actively involved in the prosecution. The plaintiff's evidence rather confirmed that the third defendant, through the person he assumed was Gerald Muvhami, provided the information and left the police and the prosecution to exercise their independent discretion. It was clear that the decision to prosecute was independently exercised by the police and the NPA. Merely laying a report with the police is insufficient. I, therefore, associate myself with the remarks by FOROMA J in *Jera* v *Hwengwere* HH 33/18, which were in sync with the authority in *Econet Wireless* (*supra*) that:

> "The court should be slow to interpret a complainant's report to the police as malicious lest it sends the wrong message to the citizenry which may be eager to resort to lawful dispute resolution by engaging police thus unwittingly encourage the resort to self-help by otherwise law-abiding citizens. Had plaintiff adduced evidence of the police and the prosecutors to corroborate the claim that defendant unduly pressurised them by means of unlawful threats to act contrary to their better judgment that the complaint was a civil one he would probably have persuaded the court to find in its favour that defendant had no reasonable or probable cause to have plaintiff prosecuted."

36. There is no doubt that the plaintiff utterly failed to establish the first requirement. By that failure, his case collapses as the failure to meet one of the four requirements is fatal to the claim. The law requires that all four requirements be met before any liability can arise.

37. Nevertheless, I am also satisfied that the plaintiff failed to show that there was no reasonable and probable cause for the prosecution which eventually ensued. In *Econet Wireless* (*supra*) at pp 10-11, the Supreme Court defined what reasonable and probable cause mean in the following terms:

> "The phrase "reasonable and probable cause for a prosecution" refers to **an honest belief in the guilt of the accused based on a full conviction, founded upon reasonable grounds, of the existence of a state of circumstances which, assuming them to be true, would reasonably lead any ordinarily prudent and cautious man, placed in the position of an accuser, to the conclusion that the person charged was probably guilty of the crime imputed**.
>
> The judgment in *Relyant Trading* (*Pty*) *Limited v Shongwe* & Anor 2007 (1) ALL SA 375 (SCA) is instructive in this regard. MALAN AJA said at para 5:
>
> > *"Malicious prosecution* consists in the wrongful and intentional assault on the dignity of a person comprehending also his or her good name and privacy. The requirements are that the arrest or prosecution be instigated without reasonable and probable cause and with 'malice' or *animo iniuriarum*. Although the expression 'malice' is used, it means, in the context of the *actio iniuriarum*, *animus iniuriandi*. In *Moaki v Reckitt & Colman (Africa) Ltd and Another* Wessels JA said:
> >
> > 'Where relief is claimed by this *actio* the plaintiff must allege and prove that the defendant intended to injure (either *dolus directus* or *indirectus*). Save to the extent that it might afford evidence of the defendant's true intention or might possibly be taken into account in fixing the *quantum* of
> >
> > damages, the motive of the defendant is not of any legal relevance.'"
>
> **The acquittal of the respondent was not in the circumstances evidence of lack of ground for his prosecution.** As explained by MALAN AJA in *Relyant Trading case* supra, **a defendant will not be liable if he/she held a genuine belief in the plaintiff's guilt founded on reasonable ground**. In effect, **where reasonable and probable cause for the arrest or prosecution exists, the conduct of the defendant in instigating it is not wrongful**. The Acting Judge of Appeal said that the requirement of reasonable and probable cause "is a sensible one" since "it is of importance to the community that persons who have reasonable and probable cause for a prosecution should not be deterred from setting the criminal law in motion against those whom they believe to have committed offences, even if in so doing they are actuated by indirect and improper motives". (*my emphasis*)

38. In this case, there was no dispute that the plaintiff faced a litany of charges, including theft of trust property, allegations of misappropriation of fuel, charges that he destroyed the company's laptop and allegations of conflict of interest. He admitted that he was called for an internal disciplinary hearing at which these charges were laid against him, and that he decided not to attend on the advice of his lawyers. He freely chose not to challenge those serious allegations. He was accordingly dismissed from employment on the same allegations he chose not to challenge. There is no basis to even suggest that the dismissal was malicious in those circumstances. He also did not take up any fight against that dismissal in any forum. He admitted that he began registering his mining claim while still employed by the third defendant, and he acknowledged a conflict of interest between his actions and the third defendant's business. The following exchanges he had with the defendants' counsel under cross-examination clearly show that it cannot seriously be said that there was no reasonable and probable cause for his prosecution:

> "Q. You said you process industrial minerals, and that is the same business as that of your previous employer?
>
> A. Correct
>
> Q. When did you start this business?
>
> A. After my dismissal from the 3rd defendant
>
> Q. You agree with me that your intention to register the mineral claim started before the arrest?
>
> A. That is true
>
> Q. It was also before your dismissal from employment by the 3rd defendant?
>
> A. That is true
>
> **Q. Was that not a conflict of interest between what you were doing and the business of the 3rd defendant?**
>
> **A. Yes it was**
>
> Q. You do agree with me that in such instances an employer would not be faulted for taking action against an employee in such circumstances?
>
> A. That is true
>
> **Q. To show that the 3rd defendant was not malicious it did convene a disciplinary hearing?**
>
> **A. That is true.**
>
> Q. And you elected not to attend the disciplinary hearing, albeit at the advice of your legal practitioners?

A. Yes

Q. Before the 3rd defendant, the disciplinary proceedings required you to answer certain allegations of impropriety as an employee, correct

A. Yes that is true

Q. The allegations involved the alleged registration of the same mining claim correct?

A. Correct among others

Q. It also involved the misappropriation of fuel?

A. Yes that is true

Q. It also involved damage to the company's property in the form of a laptop?

A. Yes that is true

Q. It also involved allegations of misappropriation of company funds?

A. That is true

Q. You decided not to attend and make representations and answer to the allegations before the hearing committee of the 3rd defendant?

A. That is correct

Q. Would the 3rd defendant be faulted for taking the decision against you in your absence?

A. No, it would not." (*my emphasis*)

39. What can be noted from the above is that the plaintiff did not challenge the allegations against him within the company's internal disciplinary process. He admitted that he acted in conflict of interest. He conceded that the third defendant could not be faulted for proceeding in his absence in the circumstances. The report that resulted in the prosecution for theft of trust property arose from the same allegations of misappropriation of the third defendant's property, which he did not challenge. Clearly, in these circumstances, it would reasonably lead any ordinary, prudent, and cautious man in the same position as the third defendant to conclude that the plaintiff was probably guilty of the crime imputed. The admissions show that the third defendant held a genuine belief in the plaintiff's guilt, founded on reasonable grounds. What is admitted need not be rebutted. An admission binds its maker with the attendant consequences. See *Manyenga* v *Petrozim (Pvt) Ltd* SC 40/23, where the court held that:

> "32. The effect of an admission has been held to be the following in the case of *Potato Seed Production (Proprietary) Ltd v Princewood Enterprises (Pvt) Ltd & Ors* HH 45-17 at p 4;

> "Indeed the effect of an admission is settled law. **Once made it binds its maker with the attendant consequences** see *Kettex Holdings P/L v S Kencor Management Services P/L* HH 236-15."

33. **The consequences of making an admission which is not withdrawn is that it will not be necessary to prove the admitted fact(s**): *Adler v Elliot* 1988 (2) ZLR 283 (S) at 288C. In addition, this Court, in the case of *Mashoko v Mashoko & Ors* SC 114-22, held that:

> "**The law on admissions in pleadings and indeed in evidence, is also settled**. A party to civil proceedings may not, without the leave of the court, withdraw an admission made, nor may it lead evidence to contradict any admission the party would have made. By equal measure, **a party is not permitted to attempt to disprove admissions made**." (*my emphasis*)

40. The requirement of there being no reasonable and probable cause was not established. The third defendant's conduct was accordingly not wrongful. There was no evidence, therefore, upon which a reasonable court might find for the plaintiff in the circumstances.

41. It is also trite that once there is reasonable and probable cause for any prosecution, malice cannot be established. Thus, at p 12, MALABA DCJ (as he then was) in *Econet Wireless* (*supra*) held that:

> "**The finding that the first and the second appellants had reasonable cause to institute the prosecution against respondent establishes absence of malice on their part**. In *Mabona v Minister of Law and Order* 1988 2 SA 654 (SE) at 658E JONES J held that the person claiming malicious arrest or malicious prosecution must not only allege but must go further to prove that the defendant acted maliciously and without probable cause. See also *Gellman v Minister of Safety & Security* 2008 1 SACR 446 (W) para 72, *Le Roux v Minister of Safety & Security 2009* 4 SA 491 (KZP) 498 para 24." (*my emphasis*)

42. Given my findings above, it is now merely academic to retain the court's curiosity in this case. By the plaintiff's failure to adduce evidence to establish the requirements that the defendants instigated the prosecution and that there was absence of reasonable and probable cause, which invariably establishes absence of malice, there is surely nothing that arises for the defendants to rebut. I am alive to the principle that the courts must be extremely chary of granting absolution from the instance at the close of the plaintiff's case, as it would have heard from one party: See *Nobert Katerere v Standard Chartered Bank Zimbabwe Limited* HB 51-08. This case, in my view, however, is one where it would be inappropriate to go to the defendants' case, as their case cannot cure the

plaintiff's fatal failures to meet the requirements for a claim of this nature. Nothing would be served, therefore, by allowing the matter to proceed.

43. Since a *prima facie* case was not established on the liability of the defendants for the delict in question, the issue of the quantum of damages does not arise. I find it unnecessary to relate further on whether the plaintiff proved a *prima facie* case in respect of the quantum of damages. The court's enquiry must now end, as I have found no evidence on which a reasonable court could find for the plaintiff at this stage.

DISPOSITION

44. There was no evidence to establish a *prima facie* case against the defendants for malicious prosecution. The fact that the plaintiff was acquitted was not, in the circumstances, evidence of lack of ground for his prosecution or that it was malicious. The plaintiff failed to prove all the requirements of a claim of this nature. Nothing arises for the defendants to rebut. The plaintiff completely destroyed his own case by the several admissions he made under cross-examination. In the circumstances, the application must succeed. In relation to costs, there is no reason to depart from the general rule that costs should follow the cause.

45. In the result, it is ordered that:

> "1. The 1st, 2nd and 3rd defendants' application for absolution from the instance be and is hereby granted.
>
> 2. The plaintiff shall pay the costs of suit."

DEMBURE J: ……

TK Hove & Partners, plaintiff's legal practitioners
Masiya-Sheshe & Associates, defendants' legal practitioners